

5. REYES, ET AL. v. DEPT. OF TRANSPORTATION, SC20200027**Motion to Enforce**

On February 3, 2026, defendants Department of Transportation and Nicholas Hudspeth (collectively, “defendants”) filed the instant motion to (1) enforce this court’s April 11, 2025, order requiring Nicholas Wagner (attorney for plaintiff Maria Reyes) to pay defendants \$1,760.00 in sanctions no later than May 9, 2025; and (2) rule on defendants’ motion for sanctions under Code of Civil Procedure section 128.7, which defendants filed on April 7, 2025, and the court allegedly took under submission on April 11, 2025.

On March 17, 2026, plaintiff Maria Reyes filed a timely opposition stating that the motion to enforce this court’s April 11, 2025, order is moot as a result of Mr. Wagner paying the required sanctions in full on March 16, 2026.

Defendants filed no reply.

With respect to defendants’ motion to enforce the April 11, 2025, order, the court denies the motion as moot.

With respect to defendants’ request that the court issue a ruling on defendants’ motion for sanctions under Code of Civil Procedure section 128.7 (“Section 128.7”), the court notes that defendants incorrectly claim that the court took the matter under submission on April 11, 2025. The court has reviewed the audio recording of the April 11, 2025, hearing. There were four motions on calendar for hearing that day: (1) plaintiff Reyes’s motion to disqualify defense counsel; (2) plaintiff Fernando Gonzalez’s motion to enforce Local Court Rule 7.12.11; (3) plaintiff Gonzalez’s ex parte application to re-open discovery; and (4) defendants’ motion for sanctions under Code of Civil Procedure section 128.5 (filed December 11, 2024). With respect to each of these four motions, the court adopted its tentative ruling.

On April 3, 2025, defendants filed an ex parte application for an order shortening time to hear their intended motion for sanctions under Code of Civil Procedure

sections 128.5 and 128.7; defendants did not file said motion until April 7, 2025 (the court notes that the motion included a request for sanctions under Code of Civil Procedure section 128.7 only; there was ultimately no request for sanctions under Code of Civil Procedure section 128.5).

During the hearing on April 11, 2025, defense counsel asked the court to rule on its Section 128.7 sanctions, noting that the court did not address the issue in its tentative ruling issued April 10, 2025. The court indicated that the Section 128.7 request was not properly before the court for hearing. The court set a hearing on the request for Section 128.7 sanctions for April 18, 2025. The court did not take any matter under submission during the April 11, 2025, hearing.

The court acknowledges that each of the four minute orders issued on April 11, 2025, incorrectly state: "Sanctions not addressed at the last hearing as requested by the defendant(s) presented by parties and matter is submitted." The court has directed the clerk to issue amended minute orders to correctly reflect the record.

On April 14, 2025, plaintiff Reyes filed a notice of appeal challenging the court's denial of her motion to disqualify defense counsel. The filing of plaintiff's appeal prompted the court to vacate all hearing dates, including the April 18, 2025, hearing on defendants' request for Section 128.7 sanctions. After the remittitur issued, defense counsel did not ask to place the request for Section 128.7 sanctions back on calendar. Thus, there is no motion pending before the court.

Based on the above, the court denies defendants' request for a ruling on the Section 128.7 sanctions.

TENTATIVE RULING # 5: DEFENDANTS' MOTION TO ENFORCE IS DENIED AS MOOT. DEFENDANTS' REQUEST THAT THE COURT RULE ON DEFENDANTS' MOTION FOR CODE OF CIVIL PROCEDURE SECTION 128.7 SANCTIONS (FILED APRIL 7, 2025) IS DENIED AS THERE IS NO MOTION PENDING. NO HEARING ON THIS MATTER WILL BE HELD (LEWIS

v. SUPERIOR COURT (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.